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TAB 14



Board of Education Report

File #: Rep-266-24/25, **Version:** 1**Agenda Date:** 4/8/2025**In Control:** Facilities

Adoption of Resolution Authorizing Filing of Applications for State Allocation Board-Administered Programs and Acknowledging Requirement to Submit Five-Year School Facilities Master Plan Facilities Services Division

Brief Description:

(Adoption of Resolution Authorizing Filing of Applications for State Allocation Board-Administered Programs and Acknowledging Requirement to Submit Five-Year School Facilities Master Plan) Recommends adoption of a resolution to authorize Los Angeles Unified School District (LAUSD or District) to file applications for State Allocation Board-administered programs and acknowledges, as a condition of participation in the School Facility Program, the requirement to submit a five-year school facilities master plan to the California Department of General Services, Office of Public School Construction.

Action Proposed:

Adoption of the attached Board of Education resolution (Exhibit A), which authorizes LAUSD personnel to file applications for State Allocation Board-administered programs and acknowledges, as a condition of participation in the School Facility Program, the requirement to submit a five-year school facilities master plan to the California Department of General Services, Office of Public School Construction.

Background:

The State Allocation Board (SAB) is responsible for determining the allocation of state resources used to fund the new construction and modernization of public-school facilities through the School Facility Program (SFP). These funding resources come from voter-approved general obligation bond funds and other designated state funds, which are allocated into various SFP programs. LAUSD has applied for grants through these programs and has been awarded approximately \$5.61 billion so far, allowing the District to build new schools, modernize existing campuses, and provide learning environments that help students achieve educational goals.

As a result of the passage of the *Kindergarten through Grade 12 Schools and Local Community College Public Education Facilities Modernization, Repair, and Safety Bond Act of 2024* (Proposition 2), each school district that intends to participate in the SFP must submit to the Office of Public School Construction (OPSC) a five-year school facilities master plan, or an updated five-year school facilities master plan, approved by the district's governing board. The specific elements required in the master plan, and the standards for master-plan preparation, are expected to be determined by the SAB sometime during the first half of 2025. Until the master plan is completed, a district may continue to submit SFP grant applications, provided that it submits to OPSC a resolution, approved by the district's governing board, acknowledging the master-plan requirement, and provided that the district complies with the deadlines specified in the resolution. The attached resolution will allow LAUSD to continue filing grant applications during this period.

Expected Outcomes:

Adoption of the attached resolution so that LAUSD may continue filing SFP grant applications until a five-year facilities master plan can be submitted to OPSC.

Board Options and Consequences:

Approval of this resolution will allow LAUSD to continue filing SFP grant applications without interruption.

Disapproval of the resolution will require LAUSD to suspend all SFP grant applications until LAUSD fulfills the five-year facilities master plan requirement. Grant applications (other than Facility Hardship and Seismic Mitigation program applications) are processed and awarded in the order in which OPSC receives them. Because of the large backlog of applications, any delay in submission of the District's applications increases the likelihood that, even with the funds recently made available under Proposition 2, funding will be exhausted by the time these applications are processed. Therefore, disapproval of this resolution could jeopardize LAUSD's ability to receive some SFP grants.

Policy Implications:

The proposal advances Pillar 2 (Joy and Wellness) and Pillar 4 (Operational Effectiveness) of the 2022-2026 Strategic Plan by facilitating the funding of school construction projects, thus providing facilities that improve students' access to safe, healthy, and educationally effective learning environments.

Budget Impact:

SFP funding of school construction projects reduces the burden on local sources of school funding.

Student Impact:

Approval of this resolution will allow the District to continue applying for SFP grants for the construction of modern school facilities, thus improving students' access to a safe and healthy learning environment.

Equity Impact:

Grants awarded through the SFP support the District's Bond program, which is focused on improving equity between newer and older schools so that all students have an equal opportunity for success.

Issues and Analysis:

None.

Attachments:

Exhibit A - Resolution Authorizing Filing of Applications for State Allocation Board-Administered Programs

Submitted:

03/11/25

File #: Rep-266-24/25, Version: 1
In Control: Facilities

Agenda Date: 4/8/2025

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:

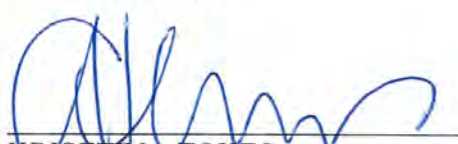

PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:

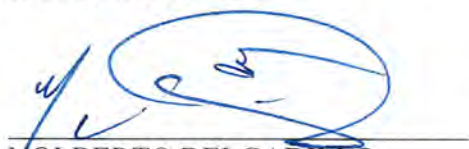

DEVORA NAVERA REED
General Counsel

✓ Approved as to form.

APPROVED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Financial Officer

✓ Approved as to budget impact statement.

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A

RESOLUTION AUTHORIZING FILING OF APPLICATION(S)
 FOR STATE ALLOCATION BOARD–ADMINISTERED PROGRAMS
 FOR THE LOS ANGELES UNIFIED SCHOOL DISTRICT ON APRIL 08, 2025

WHEREAS Education Code established multiple programs to be administered by the Department of General Services (DGS) as staff to the State Allocation Board (SAB); and

WHEREAS the Los Angeles Unified School District intends to file applications for eligibility determination, file applications for funding, and/or certify information under one or more SAB-administered program(s); and

WHEREAS the Los Angeles Unified School District intends to file applications for eligibility determination and/or applications for funding under the School Facility Program (SFP) as provided in Section 17070.10, et seq., of the Education Code; and

WHEREAS the Los Angeles Unified School District is aware that all application submittals on or after October 31, 2024, are subject to Section 17070.54 of the Education Code; and

WHEREAS the Los Angeles Unified School District is aware of the minimum requirements for the five-year school facilities master plan as outlined in Section 17070.54 of the Education Code;

NOW, THEREFORE, BE IT RESOLVED THAT, as a condition of participating in the SFP, as administered by the SAB, the Los Angeles Unified School District shall submit to the DGS a five-year school facilities master plan, or updated five-year school facilities master plan, approved by the governing board of the Los Angeles Unified School District for all application submittals on or after October 31, 2024; and

NOW, THEREFORE, BE IT RESOLVED THAT the Los Angeles Unified School District, as a condition of SFP participation, shall submit the required five-year school facilities master plan by the time the Substantial Progress deadline for each Facility Hardship and/or Facility Hardship Seismic Mitigation Program application is reached or by the time the 100 percent complete *Expenditure Report* (Form SAB 50-06) is submitted, whichever is earlier; and

NOW, THEREFORE, BE IT RESOLVED THAT the Los Angeles Unified School District, as a condition of SFP participation, shall submit the required five-year school facilities master plan within 90 days of the Office of Public School Construction notification of processing an application under any program other than Facility Hardship or Seismic Mitigation; and

NOW, THEREFORE, BE IT RESOLVED THAT the Los Angeles Unified School District acknowledges that failure to submit an acceptable five-year school facilities master plan may result in rescission of project funding.

LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report
Exhibit A

Passed, Approved and Adopted this April 08, 2025:

<u>Sherlett Hendy Newbill</u> (Name and Title)	<u>Board Member</u>	<u>Karla Griego</u> (Name and Title)	<u>Board Member</u>
<u>Dr. Rocío Rivas</u> (Name and Title)	<u>Board Vice President</u>	<u>Kelly Gonez</u> (Name and Title)	<u>Board Member</u>
<u>Scott M. Schmerelson</u> (Name and Title)	<u>Board President</u>	<u>Tanya Ortiz Franklin</u> (Name and Title)	<u>Board Member</u>
<u>Nick Melvoin</u> (Name and Title)	<u>Board Member</u>		

CERTIFICATION

I do hereby certify that the foregoing resolution was duly approved and adopted by the Board of Education of the City of Los Angeles at a meeting thereof held on April 08, 2025 by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael McLean
Executive Officer of the Board of Education

Date